Sun Pharma's submission concerning the Ferring Agreement – 22 October 2026

Summary

The Ferring Agreement, which is already in force and will be implemented in Australia as of December 1st, 2026, eliminates the overlap in ganirelix by establishing Ferring as the exclusive, independent marketer of the ganirelix product manufactured by Sun Pharma in Australia. Sun Pharma will continue operating as a white label manufacturer of ganirelix for Ferring.

Ferring

Ferring is a global pharmaceutical company focusing on reproductive medicine. Ferring is an established player in the Australian pharmaceutical sector and has extensive knowledge of the Australian IVF segment.

Ferring already markets ganirelix manufactured by Sun Pharma in multiple jurisdictions, including several EU Member States, since 2016.

The Ferring Agreement

Scope

The Ferring Agreement concerns Ganirelix SUN 0.25mg/0.5ml solution for injection (packs of one and five pre-filled syringes), approved for the prevention of the Luteinizing hormone surge in women undergoing controlled ovarian hyperstimulation for Assisted Reproductive Technology ("**Products**").

Exclusivity and commercial independence

Ferring is appointed as the exclusive distributor, marketer and seller of the Products in Australia, with sole decision-making authority over all aspects of commercial decision-making regarding the Products, subject only to applicable law and the terms of the agreement.

Ferring may grant sub-licences to sub-distributors to market or sell the Products without Sun Pharma's prior written consent. Ferring has the right to sell ganirelix product manufactured by third parties.

Once Ferring obtains TGA registration and PBS listing for its own trade name, products will be supplied in Ferring's livery, which may include Ferring's trademarks. Prior to that, Ferring will commercialize the Product under the existing trade name.

Term and termination

The Ferring Agreement took effect on 16 July 2026 and continues in force until 14 June 2036, after which it is extended automatically for successive one-year periods unless terminated by notice served six months before expiry of the initial or extended term by Ferring. Sun Pharma has no corresponding right to prevent such extension.

Sun Pharma may terminate the agreement only if Ferring fails to pay an undisputed invoice and does not remedy this within 30 days of it falling overdue, or if, on a country-by-country basis, Ferring fails to meet its minimum annual quantity for three consecutive years.

Ferring may terminate the agreement if Sun Pharma fails to deliver two separate and consecutive purchase orders within 30 days of the delivery date in two consecutive years, leaving Ferring stock-out across the territory, or if more than two recalls are required across the territory in a two-year period and the parties conclude in good faith that Sun Pharma will not be able to supply Ferring's requirements without interruption in future.

The agreement may also be terminated by either party on written notice for an uncured material breach, insolvency-type events, or cessation of business.

Ordering, pricing, supply and implementation

Ferring provides Sun Pharma with a monthly, non-binding rolling demand forecast and submits purchase orders at least six months before the requested delivery date. Sun Pharma is bound to supply the Product to Ferring for the duration of the Ferring Agreement. In the event of late delivery exceeding 60 days, the invoiced price for that order is automatically and progressively reduced.

The supply price payable by Ferring to Sun Pharma for the Product is a fixed price per pack, which is valid for the duration of the Ferring Agreement's term. The Ferring Agreement also includes a mechanism ensuring that Ferring achieves sufficient gross margin on net selling price of the Product.

If Sun Pharma experiences an inability to supply that continues for six months or longer, Sun Pharma grants Ferring a non-exclusive, sublicensable licence to its manufacturing technology so that Ferring can have the product made by a third-party contract manufacturer of its choice for sale in the territory, with Sun Pharma providing reasonable technology transfer assistance at Ferring's expense. Once such alternative manufacturing capacity becomes available, Ferring's minimum purchase obligations cease to apply and Sun Pharma's supply obligation terminates, while Ferring's exclusive distribution rights continue in full force.

Marketing authorisation / regulatory responsibility

Sun Pharma transfers customer lists and marketing information for the Product in Australia to Ferring, and, on Ferring's request, will transfer its Australia marketing authorisation for the Product to Ferring.

Until any such marketing authorisation transfer, Sun Pharma takes full responsibility for maintaining the marketing authorisation, including regulatory compliance and pharmacovigilance reporting, holding it for Ferring's commercial benefit.

Ferring is responsible for the renewal and administrative fees associated with maintaining the marketing authorisations.

Confidential and competitively sensitive information

The parties agree not to exchange information regarding marketing or sales of the Product (or competing products), other than as reasonably necessary for legal, regulatory or governmental compliance; where Sun Pharma would otherwise be required by a regulator to gather and disclose Ferring's competitively sensitive sale information, Ferring provides that information directly to the regulator, with the stated goal of avoiding that information passing to Sun Pharma.

Confidential information of each party is to be kept secret by the other for the term of the agreement and for five years following termination.